

02:00 PM **LINE 4**

24-CIV-08047

MEZZETTI FINANCIAL SERVICES, INC. VS. WE ARE THE PEOPLE, INC., ET AL

MEZZETTI FINANCIAL SERVICES, INC.
WE ARE THE PEOPLE, INC.,

LESLIE A. HOLMES

Defense Demurrer to Complaint

TENTATIVE RULING:

The court has construed the demurrer filed by defendant Gail Wilkerson as a Motion for Judgment on the Pleadings. The Motion for Judgment on the Pleadings is **GRANTED with leave to amend**.

Plaintiff Mezzetti Financial Services, Inc. must file any amended complaint within ten (10) days of notice of entry of the formal order.

A. Wilkerson Cannot File any Papers on Behalf of We Are the People, Inc.

As a preliminary matter, the demurrer and motion to strike were filed by defendant Gail Wilkerson on behalf of herself and her corporate co-defendant We Are The People, Inc. (People). A corporation must be represented by an attorney and cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1135.) A non-attorney filing or appearing on behalf of a corporation “would be engaged in the unlicensed practice of law.” (*Id.*, at p. 1146; see Bus. & Prof. Code, § 6125.) Such behavior is punishable as contempt of court. (Bus. & Prof. Code, § 6127, subd. (a).)

Accordingly, the court, on its own motion, strikes from the demurrer and motion all requests for relief made on behalf of People, pursuant to Code of Civil Procedure section 436, subdivision (b). Wilkerson shall not file any paper or appear on behalf of People while not licensed to practice law by the State Bar of California under penalty of contempt.

B. The Demurrer is Untimely and No Meet and Confer Took Place

As another preliminary matter, the demurrer is untimely. A demurrer to an initial complaint must be filed within thirty days of service of the complaint. (Code Civ. Proc., § 430.40, subd. (a).) Service was effected on Wilkerson no later than January 9, 2025. (See May 7, 2025 Proof of Service.) Accordingly, any demurrer was required to be filed on or before February 17, 2025. The instant demurrer is late by more than a year. (See Feb. 21, 2026 Demurrer.) Moreover, People is in default and even if it were represented by counsel cannot file

any papers or otherwise appear in court. Any request to vacate the default entered on May 7, 2025 would be untimely.

Nevertheless, “[t]he name of a motion is not controlling” (*City of Santa Maria v. Adam* (2019) 43 Cal.App.5th 152, 162), and the demurrer could be construed as a motion for judgment on the pleadings — “[d]emurrers and motions for judgment on the pleadings are functionally equivalent.” (*Beames v. City of Visalia* (2019) 43 Cal.App.5th 741, 786).

However, both demurrers and motions for judgment on the pleadings require the party objecting to the complaint to meet and confer in person, by telephone, or by video conference with the plaintiff and make a serious attempt at resolving the issues to be raised by the demurrer or motion. (Code Civ. Proc., § 430.41, subd. (a), § 439, subd. (a).) “As part of the meet and confer process, the demurring [or moving] party shall identify all of the specific causes of action that it believes are subject to demurrer [or motion for judgment on the pleadings] and identify with legal support the basis of the deficiencies. The party who filed the complaint ... shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint ... could be amended to cure any legal insufficiency.” (*Id.*, at § 430.41, subd. (a)(1); cf. *id.*, § 439, subd. (a)(1).) The demurring or moving party must then file a declaration under penalty of perjury proving that this process was completed. (*Id.*, at § 430.41, subd. (a)(3), § 439, subd. (a)(3).)

Wilkerson has not shown that she has complied with this requirement. While an insufficient meet-and-confer process is not grounds to rule on the merits of a demurrer or motion for judgment on the pleadings, “trial courts are not required to ignore defects in the meet and confer process.” (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 356.) Notwithstanding this defect, the court rules on what it construes to be a motion for judgment on the pleadings.

Going forward, Wilkerson is cautioned that she must comply with all meet-and-confer obligations.

C. Wilkerson’s Motion for Judgment on the Pleadings is Granted with Leave to Amend

A motion for judgment on the pleadings has the same function as a general demurrer, but is made after the time for demurrer has expired. Except as provided by Code of Civil Procedure, section 438, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) The grounds for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts the court may judicially notice. (Code Civ. Proc., § 438, subd. (d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759.) A motion for judgment on the pleadings assumes that all facts pleaded in the complaint are true, no matter how improbable. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591; *CrossTalk Productions, Inc. v. Jacobson* (1998) 65 Cal.App.4th 631, 635.)

Wilkerson contends that plaintiff Mezzetti Financial Services, Inc. lacks standing because it has neither sufficiently alleged or proven it is the real party in interest as to the sole cause of action for breach of contract. The Complaint alleges that the lease agreement was entered into by “1735-1755 East Bayshore Partners and We Are The People, Inc., and Gail Wilkerson.” (Dec. 17, 2024, Complaint, § BC-1.) Mezzetti is not alleged to be party to the contract. Instead, the Complaint alleges Mezzetti “is the Assignee of Beals Martin and Associates, Inc., Authorized Agent of 1735–1755 East Bayshore Partners.” (*Id.*, § 9.)

“A cause of action is assignable by its owner if it arises out of a legal obligation or a violation of a property right.” (*Arabia v. BAC Home Loans Servicing, L.P.* (2012) 208 Cal.App.4th 462, 472, citing Civ. Code, § 954.) “With the exception of causes of action of a personal nature, such as injuries arising out of tort, a cause of action is assignable.” (*Ibid.*) It is elementary that a cause of action may be assigned to another only by the owner of that cause of action. At trial, “[t]he burden of proving an assignment falls upon the party asserting rights thereunder. [citations] In an action by an assignee to enforce an assigned right, the evidence must not only be sufficient to establish the fact of assignment when that fact is in issue [citation], but the measure of sufficiency requires that the evidence of assignment be clear and positive to protect an obligor from any further claim by the primary obligee.” (*Cockerell v. Title Insurance & Trust Co.* (1954) 42 Cal.2d 284, 292, citations omitted.) Accordingly, at the pleading stage, an assignee must plead at least the ultimate facts showing it has been assigned the cause of action by the preceding owner.

Here, the Complaint alleges that Beals Martin and Associates, Inc. assigned the cause of action. However, while the Complaint alleges that Beals Martin was the authorized agent of the lessor, it does not allege or otherwise indicate that Beals Martin was the owner of the cause of action for breach of contract such that it could assign that cause of action to Mezzetti. Accordingly, the Complaint’s allegations do not sufficiently show that the lessor (1735-1755 East Bayshore Partners) assigned its cause of action to its agent, Beals Martin, which then assigned the cause of action to Mezzetti.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Wilkerson shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CLJ-01117

WELLS FARGO BANK, N.A. VS. HYUN CHO

WELLS FARGO BANK, N.A.
HYUN CHO

HARLAN M. REESE
DENNIS SMITH/PHILIP GREEN

Defense Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Philip Green to be relieved as counsel of record for defendant Huyn Cho is denied without prejudice. Plaintiff has not offered sufficient proof that the moving papers were served in compliance with California Rules of Court, rule 3.1362(d). The proof of service only reflects service of the Notice of Motion. There is no proof that the Green declaration and the proposed order were served on plaintiff and defendant.

With respect to the Notice of Hearing, the proof of service indicates it was served on defendant on February 24, 2026, but it does not say how the service was accomplished. Defendant's mailing address is provided, but it does not state all the information required for proof of mail service under Code of Civil Procedure, section 1013a. Similarly, the proof of service indicates plaintiff was served electronically through the California Electronic Case Filing System. Neither the declarant nor the plaintiff's electronic service address is stated as required by Code of Civil Procedure, section 1013b.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.
